

Opinion of the Court

preting terms within a land patent, where it fell to the judge, not the jury, to construe the words.⁸

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Losing, then, on the contention that juries generally had interpretive responsibilities during the 18th century, Markman seeks a different anchor for analogy in the more modest contention that even if judges were charged with construing most terms in the patent, the art of defining terms of art employed in a specification fell within the province of the jury. Again, however, Markman has no authority from the period in question, but relies instead on the later case of *Neilson v. Harford*, Webs. Pat. Cas. 328 (Exch. 1841). There, an exchange between the judge and the lawyers indicated that although the construction of a patent was ordinarily for the court, *id.*, at 349 (Alderson, B.), judges should “leav[e] the question of words of art to the jury,” *id.*, at 350 (Alderson, B.); see also *id.*, at 370 (judgment of the court); *Hill v. Evans*, 4 De. G. F. & J. 288, 293–294, 45 Eng. Rep. 1195, 1197 (Ch. 1862). Without, however, in any way disparaging the weight to which Baron Alderson’s view is entitled, the most we can say is that an English report more than 70 years after the time that concerns us indicates an exception to what probably had been occurring earlier.⁹ In place of

⁸ As we noted in *Brown v. Huger*, 21 How. 305, 318 (1859):

“With regard to the second part of this objection, that which claims for the jury the construction of the patent, we remark that the patent itself must be taken as evidence of its meaning; that, like other written instruments, it must be interpreted as a whole . . . and the legal deductions drawn therefrom must be conformable with the scope and purpose of the entire document. This construction and these deductions we hold to be within the exclusive province of the court.”

⁹ In explaining that judges generally construed all terms in a written document at the end of the 18th century, one historian observed that “[i]nterpretation by local usage for example (today the plainest case of legitimate deviation from the normal standard) was still but making its way.” 9 Wigmore, Evidence §2461, at 195; see also *id.*, at 195, and n. 6 (providing examples of this practice). We need not in any event consider here